

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX,

-----X
ALEX DUNA,

Index No.:
Date Purchased:

SUMMONS

Plaintiff,
-Against-

Plaintiff designates
BRONX County as the place of
trial.

THE CITY OF NEW YORK, POLICE OFFICER
ROSARIO MONTERO (SHIELD NO. 23388) and JOHN
DOES 1-3

The basis of venue is:
Plaintiff's Residence

Plaintiff's Residence:
2024 Jerome Avenue

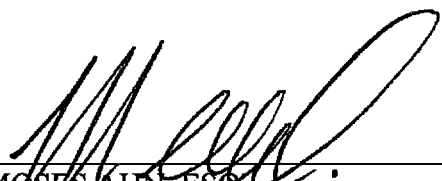
Defendants,

-----X County of Bronx

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 3, 2018



MOSES AHN, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
ALEX DUNA
Financial Square at 32 Old Slip - 8th FL
New York, New York 10005
(212) 962-1020
Our File No. 26660

TO:

THE CITY OF NEW YORK
c/o The New York City Law Department
100 Church Street
New York, NY 10007

POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388)
Transit Division District One
59th Street/Columbus Circle Subway Station
New York, NY 10019

JOHN DOES 1-3
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX,

-----X
ALEX DUNA,

Plaintiff,

-Against-

COMPLAINT

JURY TRIAL
DEMANDED

THE CITY OF NEW YORK, POLICE OFFICER ROSARIO
MONTERO (SHIELD NO. 23388) and JOHN DOES 1-3

Defendants,

-----X
Plaintiff, ALEX DUNA, by and through his attorneys, **THE LAW OFFICES OF
MICHAEL S. LAMONSOFF, PLLC**, as and for his Complaint, respectfully alleges, upon
information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, in that Plaintiff's county of residence is and has been Bronx County in the State of New York.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

6. Plaintiff, ALEX DUNA, is, and has been, at all relevant times, a resident of the County of Bronx, City and State of New York.
7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
9. At all times hereinafter mentioned, the individually named defendant, POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388), was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties. Defendant Montero is sued herein in his official and individual capacities. At all times hereinafter mentioned, Defendant Montero was assigned to the Transit Division District 1 of the NYPD.
10. At all times hereinafter mentioned, the individually named defendants, JOHN DOES 1-3,

was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties. Defendants JOHN DOES 1-3 are sued herein in his official and individual capacities. At all times hereinafter mentioned, Defendants JOHN DOES 1-3 were assigned to the Transit Division District 1 of the NYPD.

11. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.
12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

14. On September 2, 2017 at approximately 8:38 a.m., Plaintiff ALEX DUNA, was lawfully located at or near the subway station at Avenue of the Americas & West 42nd Street in the County, City and State of New York.
15. At this time, Defendant POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388) and several other members of the New York City Police Department arrived at the location on duty.

16. Without any legal justification or excuse, the Defendant POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388) and JOHN DOES 1-3 unlawfully seized and questioned the Plaintiff.
17. The search revealed no evidence of any guns, drugs, or contraband.
18. Plaintiff was not engaged in any unlawful or suspicious activity.
19. Nonetheless, the Plaintiff was formally arrested, was placed in handcuffs, and was transported to the station house of a local area precinct believed to be the Transit Division where he was searched and detained for several hours.
20. The search yielded no evidence of any guns, drugs, or contraband.
21. At no time on September 2, 2017, did Plaintiff commit any crime or violation of law.
22. At no time on September 2, 2017, did Defendant POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388) or JOHN DOES 1-3 possess probable cause to arrest Plaintiff or to order Plaintiff's arrest.
23. At no time on September 2, 2017, did Defendant POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388) or JOHN DOES 1-3 possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.
24. Plaintiff was held for several hours at the stationhouse before he was transported to New York County Central Booking where he was held for several additional hours before he was arraigned on a criminal complaint containing false allegations which Defendant POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388) knew were false and/or the basis of improper identification procedures.
25. These and other allegations were false and Defendant POLICE OFFICER ROSARIO

MONTERO (SHIELD NO. 23388) knew they were false when she made them.

26. Pursuant to these false allegations, the Plaintiff was charged with one count of exposure of a person in the first degree.
27. Despite Defendants' unconstitutional actions, Plaintiff's case was dismissed completely and sealed pursuant to CPL § 160.50.
28. Defendant POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388) provided knowingly false and misleading information to prosecutors at the New York County District Attorney's Office.
29. Each of the allegations were false and the Defendant POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388) knew them to be false when they were made.
30. As a result of the foregoing, Plaintiff ALEX DUNA sustained, *inter alia*, embarrassment, humiliation, physical injuries, and deprivation of his constitutional rights.
31. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.
32. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
33. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
34. The acts complained of were carried out by the aforementioned individual Defendants in

their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF FOR
FALSE ARREST AND FALSE IMPRISONMENT
UNDER STATE LAW AND FEDERAL LAW, PURSUANT TO 42 U.S.C. § 1983**

36. Plaintiff ALEX DUNA repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
37. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.
38. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his safety, and he was falsely arrested without probable cause

**SECOND CLAIM FOR RELIEF FOR
DENIAL OF RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

39. Plaintiff, ALEX DUNA, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
40. At no time did Defendant POLICE OFFICER ROSARIO MONTERO (SHIELD NO. 23388) have any legal basis for commencing criminal process, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or

otherwise appropriate.

41. Defendant Rosario misrepresented and falsified evidence to the New York County District Attorney.
42. Defendant Rosario did not make a complete and full statement of facts to the District Attorney.
43. Defendant Rosario withheld exculpatory evidence from the District Attorney.
44. Defendant Rosario was directly and actively involved in the initiation of criminal proceedings against Plaintiff.
45. Defendant Rosario lacked probable cause to initiate criminal proceedings against Plaintiff.
46. Defendant Rosario acted with malice in initiating criminal proceedings against Plaintiff.
47. Defendant Rosario directly and actively involved in the continuation of criminal proceedings against Plaintiff.
48. Defendant Rosario lacked probable cause to continue criminal proceedings against Plaintiff.
49. Defendant Rosario misrepresented and falsified evidence throughout all phases of the criminal proceedings against Plaintiff.
50. Notwithstanding the perjurious and fraudulent conduct of Defendant Rosario the criminal proceedings were terminated in Plaintiff's favor when he acceded to an adjournment in contemplation.
51. By so doing, the individual Defendants, individually and collectively, subjected Plaintiff to fabrication of evidence, denial of fair trial, and denial of due process, and thereby

violated, conspired to violate, and aided and abetted in the violation of Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

52. By reason thereof, the individual Defendant Rosario have violated 42 U.S.C. §1983 and caused Plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

THIRD CLAIM FOR RELIEF FOR
EXCESSIVE FORCE
UNDER 42 U.S.C. § 1983

53. Plaintiff, ALEX DUNA repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
54. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper strip searches.
55. As a result of the Defendants' conduct, Plaintiffs was subject to excessive force, as described herein.
56. As a result of Defendants' conduct, Plaintiff, ALEX DUNA was subjected to excessive force by the Defendants intentionally causing right shoulder to dislocate by stretching his arms apart, as described herein.
57. As a result of Defendants' conduct, Plaintiff, ALEX DUNA was subjected to excessive force by the Defendants intentionally causing nerve damage to both hands by over tightening handcuffs and leaving them on longer than needed, as described herein.
58. As a result of the Defendants' conduct, the Plaintiff was subject to a level of force by the Defendants in excess of what was reasonable under the circumstances.
59. As a result of the foregoing, the Plaintiff's liberty was restricted, and he was put in fear

for his physical safety without probable cause or any legal justification, and he was physically injured.

**FOURTH CLAIM FOR RELIEF FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

60. Plaintiff, ALEX DUNA, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
61. Defendants fabricated knowingly false material evidence and forwarded said evidence to prosecutors at the New York County District Attorney's Office.
62. As a result, Plaintiff suffered deprivation of his liberty, as he was required to make numerous court appearances to contest the false accusations against him.
63. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his safety, and he was detained and falsely arrested, detained, and maliciously prosecuted without probable cause.

**FIFTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

64. Plaintiff, ALEX DUNA, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
65. Defendants arrested, searched, and incarcerated plaintiff, ALEX DUNA, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety, and violate his constitutional rights.
66. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent

authority attendant thereto.

67. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

68. Those customs, policies, patterns, and practices include, but are not limited to:

- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
- iv. failing to properly train police officers in the requirements of the United States Constitution.

69. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
- iii. falsifying evidence and testimony to support those arrests;
- iv. falsifying evidence and testimony to cover up police misconduct.

70. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate

indifference to the safety, well-being and constitutional rights of Plaintiff, ALEX DUNA.

71. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
72. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.
73. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiff was placed under arrest unlawfully.
74. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.
75. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.
76. All of the foregoing acts by defendants deprived Plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

WHEREFORE, the Plaintiff respectfully requests judgment against Defendants on each of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
December 3, 2018



MOSES/AHN, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
ALEX DUNA
Financial Square at 32 Old Slip - 8th FL
New York, New York 10005
(212) 962-1020
Our File No. 26660

VERIFICATION

MOSES AHN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiffs in the action within. I have read the annexed

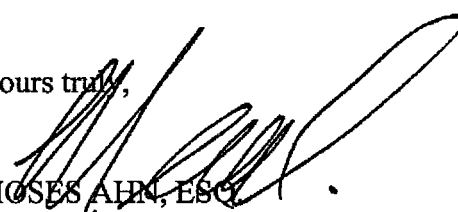
SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs are not presently in the county wherein the attorneys for the Plaintiffs maintain their offices.

Dated: New York, New York
December 3, 2018

Yours truly,



MOSES AHN, ESQ.
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LAMONSOFF, PLLC
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